

Court No. - 39

Case :- WRIT - C No. - 43926 of 2014

Petitioner :- Ram Sagar

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- K.C. Yadav

Counsel for Respondent :- C.S.C.,Ayank Mishra

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Put up as fresh on 4.9.2014, by which time Sri Mahboob Ahmad, learned counsel appearing for respondent no. 4 as well as learned Standing Counsel appearing for respondent nos. 1 to 3 may seek instructions in the matter, specially with regard to the fact as to whether attached property of the petitioner, in pursuance of the impugned recovery, has been put to auction or not?

Order Date :- 22.8.2014

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Court No. - 39

Case :- WRIT - C No. - 43926 of 2014

Petitioner :- Ram Sagar

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- K.C. Yadav

Counsel for Respondent :- C.S.C.,Mahboob Ahamad

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Sri Mahboob Ahamad appearing for the respondents prays for and is allowed three days further time to seek instruction in the matter.

Put up as fresh on 09.09.2014.

Order Date :- 4.9.2014

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Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Sri Mahboob Ahamad, learned counsel for the respondent no. 4 states that despite communication sent, he has not been able to receive complete instruction in the matter so far. However, he prays for a week's further time to comply with the order dated 22-08-2014.

Prayer is allowed.

Put up as fresh on 17th September, 2014.

Till the next date of listing, no coercive steps against the petitioner in pursuance of the impugned recovery citation shall be taken.

Order Date :- 9.9.2014/nd

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Counsel for Petitioner :- K.C. Yadav

Counsel for Respondent :- C.S.C.,Mahboob Ahamad

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Heard learned counsel for the petitioner.

On 09.09.2014, the matter was adjourned to enable Shri Mahboob Ahmad to obtain instructions in the matter.

He has produced before us a letter issued by the Tehsildar, Sadar, Basti stating therein that the no sale of the property has yet taken place.

The grievance of the petitioner, as raised in the present writ petition, is that though his electricity connection was disconnected in the year 2007, but without any assessment having been made, all of sudden, recovery certificate has been issued. In respect of the petitioner's grievance, he has also made a representation, which is said to be pending.

Shri Mahboob Ahmad, who appears for the respondent, submits that the Executive Engineer, respondent no. 4 is the competent authority to deal with the grievance of the petitioner, by virtue of the provisions contained under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and, thus, the grievance of the petitioner shall be addressed and decided in accordance with law by him.

Considering the facts and circumstances, writ petition stands disposed of with the direction to respondent no. 4 to consider the grievance of the petitioner and decide the same by a reasoned and speaking order in accordance with law within a period of six weeks from the date of production of a certified copy of this order.

For a period of two months or till the disposal of the representation, whichever is earlier, no coercive action shall be taken against the petitioner.

Order Date :- 17.9.2014

VKS